

**2018 YLRN 52**  
**[Sindh High Court]**

*Judges: Honorable Justice Aftab Ahmed Gorar*



**HASSAN SAMEER**

versus

**State**

**MISUSE OF BAIL AND FRAUD ON COURT**

Crl. Bail Applications No. 135 of 2017, Crl. Bail Applications No. 299 of 2017  
decided on 10th April, 2017.

**(a) Criminal Procedure Code (V of 1898)---S.497; Penal Code (XLV of 1860)---S.406, S.419, S.420, S.109; Electronic Transactions Ordinance (LI of 2002)---S.36, S.37---Misuse of Bail and Fraud on Court---**

No, the accused misused the concession of bail and played fraud with the Court by submitting a fabricated death certificate; as a fugitive from law who lost normal rights, he is not entitled to bail.

An accused who misuses the concession of bail by perpetrating fraud on the Court (e.g., submitting a fake death certificate) loses entitlement to the discretionary relief of bail.

*Muhammad Ahmed Pirzada for Appellant.*

*Muhammad Javed K. K. for Respondent.*

*S.I. Akbar Khan for Department.*

**(b) Criminal Procedure Code (V of 1898)---S.497---Grant of Bail based on Consistency and Documentary Evidence---**

Yes, the co-accused are entitled to bail following the rule of consistency as their case is on better footing than the main accused, and the evidence is documentary

and in prosecution's possession.

Bail should be granted to co-accused on the rule of consistency if their case is on better footing than a main accused who was earlier granted bail, especially when the case depends on documentary evidence that cannot be tampered with.

*Relied upon:* Abdul Salam v. The State 1980 SCMR 142; Saeed Ahmed v. The State 1996 SCMR 1132; Sheikh Mukhtar Ahmad v. The State 2011 MLD 1761

*Muhammad Ahmed Pirzada for Appellant.*

*Muhammad Javed K. K. for Respondent.*

*S.I. Akbar Khan for Department.*

(c)

*Relied upon:* Abdul Salam v. The State 1980 SCMR 142; Saeed Ahmed v. The State 1996 SCMR 1132; Sheikh Mukhtar Ahmad v. The State 2011 MLD 1761

*Muhammad Ahmed Pirzada for Appellant.*

*Muhammad Javed K. K. for Respondent.*

*S.I. Akbar Khan for Department.*

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**Bail granted to Applicants Hassan Sameer and Shahwaiz Ahmed; bail application of applicant Parvez Ahmed dismissed.**

Date of hearing: 10th April, 2017.

## ORDER

**AFTAB AHMED GORAR, J.**---By this common order I intend to dispose of instant Bail application No.135/2017 filed by applicants Hasan Sameer and Shahwaiz Ahmed, so also Criminal Bail Application No.299/2017 filed by applicant Parvez Ahmed as both the same are upshot of one and same crime viz. FIR No.80/2014 under section 36/37 ETO 2002 read with sections 406/419/420/109 PPC at P.S. FIA Cyber Crime Circule, Karachi.

The brief facts of the case as narrated in the FIR in nutshell are that the accused Parvez Ahmed son of Bashir Ahmed launched a illegal/fraudulent earning website in the name of [www.pakptc.com.pk](http://www.pakptc.com.pk) whereby he deceived the innocent people and extorted huge amounts in his personal bank account(s), therefore, instant FIR was registered.

Learned Counsel for the Applicants contends that the applicants are innocent and have falsely been implicated in the instant crime at the whims and wishes of the Investigating Officer with mala fide intention. He further contends that there is no direct or indirect evidence against the applicants therefore, the applicants are entitled for grant of bail at this stage. Learned counsel for the applicants urges that the case of the applicants is of further inquiry as there are no grounds to believe that the applicants are guilty of the offence with which they have been

charged. Learned counsel further contends that the prosecution evidence is based on the documents, which cannot be influenced and tempered if they are enlarged on bail. He prays that the applicants may be enlarged on bail at this stage.

Learned Assistant Attorney General for Pakistan opposes the grant of bail to the applicants. He submits that the sufficient material is available on record, which prima facie connect the applicants in the instant crime. He further submits that the accused persons have cheated and defrauded the innocent people and extorted money from them.

I have heard Mr. Muhammad Ahmed Pirzada counsel for the Applicant and Mr. Muhammad Javed K.K. Assistant Attorney General for Pakistan, so also perused the material available on record with their assistance.

It is an admitted fact that the applicant/accused Parvez Ahmed was granted bail vide order dated 28.11.2014 passed by the Ist Additional Sessions Judge, Karachi-East but later on learned counsel appearing on behalf of accused Parvez Ahmed filed statement before the trial Court alongwith computerized copy of death certificate of accused Parvez issued by the concerned authority, therefore, the proceedings of this case against the accused Parvez Ahmed was declared as abetted vide order dated 20.08.2015. A perusal of record reflects that thereafter, investigation of the case was transferred and entrusted to the present investigating officer and during re-investigation I.O. suspected about the genuineness of the death certificate of main accused Parvez Ahmed, ultimately on spy information he arrested the accused Parvez Ahmed from Flat No.329, 3rd Floor, Hill View Apartment, Block-D, Nazimabad, Karachi and after his arrest he admitted before the I.O. that he fraudulently obtained the fake death certificate through one agent.

Applicant Parvez mis-used the concession of bail already granted to him and played cheating and fraud with the Court by placing his fake and fabricated computerized death certificate and got abated his case, therefore, being fugitive from law he has lost some of his normal rights in the society and he is not entitled for grant of bail.

On the other hands case of applicants/accused Hassan Sameer and Shahwaiz Ahmed is concerned. They were not nominated in the FIR and interim challan and only accused Pervaiz Ahmed was challaned. ,Case of the accused Sameer and Shahwaiz Ahmed is on better footings then the case of main accused Parvez Ahmed, who was first granted bail by the learned Trial Court on merit but due to his fraud and cheating with the Court same was withheld. In my humble opinion the applicants Hassan Sameer and Shahwaiz Ahmed are entitled for grant of bail following rule of consistency as their case is on better footings then the case of main accused Parvez. If any authority is needed, the reference may be made to the case of Abdul Salam v. The State reported in [1980 SCMR 142](#) it has been held that:-

"Courts to maintain equity of treatment between persons placed in similar situations and similar circumstances. No distinction between case of petitioner

and case of co-accused. Bail having been allowed to co-accused, privilege of bail, held, should not have been refused to the Petitioner".

The case of the applicants Hassan Sameer and Shahwaiz also depend upon the documentary evidence which are in possession of the prosecution which cannot be tempered if they are enlcharged on bail. This version finds support from the case of Saeed Ahmed versus the State reported in [1996 SCMR 1132](#), wherein the Honourable Supreme Court has held that :-

"Case against the accused entirely depended upon documentary evidence which was in possession of the prosecution and there was no possibility of tampering with the same. Petition for leave to appeal was converted into an appeal and the accused was admitted to bail in circumstances.

In another case of Sheikh Mukhtar Ahmad v. The State reported in [2011 MLD 1761](#), wherein it has been observed that:-

"All the documentary evidence having been collected by the prosecution, the same was not likely to be tampered with by the accused. Case of accused fell within the purview of further inquiry. Accused was admitted to bail in circumstances.

In view of above facts, circumstances and case laws, I am inclined to grant bail to the Applicants Hassan Sameer and Shahwaiz Ahmed subject to furnishing solvent surety in the sum of Rs.100,000/- (Rupees One Lac only) each and P.R. Bond in the like amount to the satisfaction of the learned Trial Court. However, bail application of applicant Parvez Ahmed is hereby dismissed as he misused the concession of bail granted to him and played cheating and fraud with the Court.

Observations made hereinabove are of tentative nature and the trial Court shall not be influenced by any such observation.

WA/H-7/Sindh Order accordingly.